

HOUSE No. 1649**The Commonwealth of Massachusetts**

PRESENTED BY:

Marjorie C. Decker and Paul McMurtry*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act concerning furnishing transcripts of notes and fees.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>1/16/2025</i>
<i>Jennifer Balinsky Armini</i>	<i>8th Essex</i>	<i>2/12/2025</i>
<i>Todd M. Smola</i>	<i>1st Hampden</i>	<i>2/26/2025</i>
<i>David T. Vieira</i>	<i>3rd Barnstable</i>	<i>2/26/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>2/26/2025</i>
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>3/5/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>3/14/2025</i>
<i>Manny Cruz</i>	<i>7th Essex</i>	<i>3/17/2025</i>
<i>Daniel Cahill</i>	<i>10th Essex</i>	<i>3/26/2025</i>
<i>Sean Reid</i>	<i>11th Essex</i>	<i>3/26/2025</i>
<i>Kristin E. Kassner</i>	<i>2nd Essex</i>	<i>3/26/2025</i>
<i>Donald H. Wong</i>	<i>9th Essex</i>	<i>4/7/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>4/7/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>4/7/2025</i>
<i>Donald R. Berthiaume, Jr.</i>	<i>5th Worcester</i>	<i>4/11/2025</i>
<i>Jeffrey Rosario Turco</i>	<i>19th Suffolk</i>	<i>5/28/2025</i>
<i>Estela A. Reyes</i>	<i>4th Essex</i>	<i>5/28/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>5/28/2025</i>

HOUSE No. 1649

By Representatives Decker of Cambridge and McMurtry of Dedham, a petition (accompanied by bill, House, No. 1649) of Marjorie C. Decker, Jennifer Balinsky Armini and others relative to furnishing transcripts of notes and fees. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act concerning furnishing transcripts of notes and fees.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 221 of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by striking out section 88 and inserting in place thereof the following
3 section:-

4 Section 88. Upon request of the presiding justice or any party, the transcriber shall
5 furnish a transcript of their notes or audio recording, or any part thereof, taken at a trial or
6 hearing, for which they shall be paid by the party requesting it at the rate of \$4.50 per page for
7 the original and \$1.50 per page for each copy ordered. Copies, if so requested by an indigent
8 person or counsel for an indigent person, shall be paid at \$.15 per page. In the event that a rush
9 transcript is ordered by the presiding justice or any party, the rate shall be \$6.75 per page for the
10 original and \$2.25 per page for each copy; and provided further, that copies, if so requested by an
11 indigent person or counsel for an indigent person, shall be paid at \$.23 per page. If a transcript is
12 ordered by the presiding justice or, in a criminal case, by the district attorney, payment therefor

13 shall be made at the same rate by the administrative office of the trial court upon a voucher
14 approved by the presiding justice and, in a criminal case, the charges for transcripts furnished to
15 a justice and to the district attorney shall be taxed like other expenses. If the presiding justice
16 orders that a statement given to the police be transcribed, all parties shall receive a copy and
17 payment therefor shall be made at the same rate by the administrative office of the trial court
18 upon a voucher approved by the presiding justice.

19 Beginning on the first day of July 2030, and on the first day of each fifth July thereafter,
20 the rates and fees set forth in section 88 shall be increased to reflect the cumulative annual
21 percentage change in the Consumer Price Index and published as the adjusted amounts as used in
22 this section. The (1) office of transcription services or (2) the presiding justice of the
23 administrative office of the trial court shall issue directives to implement the purposes of this
24 section.